

25NNCV03926 25NNCV03926

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-09-21

Motion: MOTION TO COMPEL PRODUCTION OF DOCUMENTS RESPONSIVE TO BUSINESS RECORDS SUBPOENA

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Case Number: 25NNCV03926 Hearing Date: September 21, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

RACHEL
DAVILA,

Plaintiff(s),

vs.

COUNTY
OF LOS ANGELES, et al.,

Defendant(s).

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CASE NO.: 25NNC03926

[TENTATIVE]

ORDER RE: MOTION TO COMPEL PRODUCTION OF DOCUMENTS RESPONSIVE TO
BUSINESS RECORDS SUBPOENA

Dept.

3

8:30

a.m.

September

21, 2026

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At issue in this motion are defendants

County of Los Angeles and Deputy Van P. Lam's (collectively, "Defendants") subpoenas to the Department of Motor Vehicles ("DMV"), to Plaintiff's prior employers, and to Mercury Insurance for her insurance records. Plaintiff, not the subpoenaed entities, object to these subpoenas. Defendants argue that DMV records are relevant because they concern the motor vehicle collision at issue, including statements made by Plaintiff, accident-related reporting, licensing information, and other information bearing on liability, causation, and damages such as prior accidents, claimed injuries, and prior license suspensions or restrictions. (Motion, p. 1.) Defendant's further argue that Plaintiff's

employment records are relevant for her wage loss, earning capacity, inability to work claims. (Motion, p. 1.) Last, as to her car insurance records, Defendants assert that these are relevant to prior injury claims, prior accidents, statements made regarding this incident, as well as causation and damages. (Motion, p. 1.) Plaintiff did not file a motion to quash but only filed a general objection. The subpoenas sought the production of records on May 4, 2026, and on April 22, 2026, Plaintiff served a general objection. Plaintiff did not file a motion to quash. After some discussion, Defendants agreed to limit the scope of their medical subpoenas, but the parties were unable to reach an agreement as to the subpoenas at issue in this motion.

On May 13 and 14, 2026, Plaintiff's counsel asserted that the deposition officer could no longer seek documents pursuant to the subpoenas because the date of production had passed. Plaintiff claimed (and still contends) that a new "notice" was required after the production date expired. Plaintiff threatened litigation against the deposition officer and the deposition officer stated that it would hold the disputed records pending an agreement of the parties or a court order.

Plaintiff fails to seriously advance any substantive arguments regarding the merits of the subpoenas, even failing to serve a response to Defendants' separate statement. Instead, Plaintiff chooses to stand on its meritless procedural claims by requesting the Court deny the motion as untimely and require Defendants to serve another notice to consumer or notice to employee and issue an additional subpoena. (Opp., pp. 2, 5 ["Plaintiff's biggest issue is with Defendant's copy service, Ronsin, [who] continued to actively contact third-parties to obtain employment and personal records...."]) However, Plaintiff cites to no authority holding that a subpoena's validity is tethered to the stated date of production. Furthermore, Plaintiff's threats of litigation against the deposition officer are improper because Plaintiff did not file a motion to quash but only filed a general objection. As a party to this action, it was Plaintiff's burden to file a motion to quash pursuant to Code of Civil Procedure section 1987.1 before the production date.

Plaintiff also contends that this motion is untimely because it was not filed within 20 days under Code of Civil Procedure section 1985.3(g) and 1985.6(f). However, these statutes apply to motions that are brought in response to an objection raised by nonparty employees/consumers, which she is not.

Accordingly, the motion to compel compliance is GRANTED and Ronsin is ordered to release the records produced in response to Defendant's subpoenas to the DMV, Mercury Insurance, LSC Communications MCL LLC and LSC Communications US LLC, Nu Way Builders, and D'S Hair Salon.

Dated
this 21st
day of September 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.